



SUPREET CHEMICALS LIMITED
A SPECIALTY CHEMICAL COMPANY

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CIN No. : U24231GJ1992PLC017944

POLICY ON PREVENTION OF SEXUAL HARASSMENT AT THE WORKPLACE

Supreet Chemicals Limited has had a policy on prevention of sexual harassment at the workplace since 1992. The revised policy in 2013 incorporates the recent legislation of Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.

PHILOSOPHY:

We, at Supreet Chemicals Limited, respect the dignity of all employees working for the Company irrespective of their gender or hierarchy and we expect responsible conduct and behavior on the part of all our employees at all levels. Providing for a safe and congenial work environment to all employees is an integral part of the Company's employment policy.

OBJECTIVE:

This policy has been framed to achieve following objectives:

- Promote a workplace based on equality and respect.
- Provide a safe and congenial work environment.
- Awareness and sensitization about sexual harassment at the workplace.
- Prevent sexual harassment
- Provide formal and informal mechanism for redressal in case of complaint of sexual harassment at the workplace.
- Define the implications and outcome of sexual harassment.
- Ensure protection against retaliation to complainants, witnesses, committee members and other employees involved in prevention and complaint resolution.

SCOPE:

This policy shall be applicable to all employees of Supreet Chemicals Limited including any associate engaged on fixed term contract, short term engagement, temporary, apprentice, trainees, contract persons and visitors on our premises. It shall also include any unwelcome behavior of a sexual nature mentioned in the policy by any Vendor/Supplier/Contractor including their agents, supervisors, managers and their employees to any of our employees on our premises.

DEFINITIONS:

1. Sexual Harassment:

Sexual harassment includes such unwelcome sexually determined behavior (whether direct or by implication) such as:

- a. Physical contact and sexual advances
- b. Demand or request for sexual favors;
- c. Sexually - colored remarks
- d. Showing pornography ; and
- e. Any other unwelcome physical, verbal or non-verbal or written conduct of a sexual nature.



“Unwelcome sexually determined behavior” includes but is not limited to:

- Subjecting another person to an unwelcome act of physical intimacy including grabbing, brushing, touching, including sexual flirtations, advances or propositions.
- Making any unwelcome remark with sexual connotations like sexually explicit, remarks, cracking jokes or using sentences with sexual connotations or making sexist remarks, etc.
- Showing any sexually explicit visual material in the form of pictures / cartoons / pin-ups/ calendars / screen-savers on computers / any offensive written or electronic material / including pornographic.
- Engaging in any other unwelcome conduct of a sexual nature, verbal or even nonverbal, staring to make the other person uncomfortable, making offensive gestures, etc.
- Sending unwelcome communication of a sexual nature, through e-mail, letter, mobile technology or any other form of written or electronic communication, exhibiting conduct of a sexual nature.
- Making an unwelcome demand or request whether directly or by implication for sexual favors and/or making it a condition of employment / payment of wages / increments /promotion / preferential treatment / threat to detrimental treatment in employment / threat to current or future employment status or similar act.
- Where a Supervisor requests sexual favors from a junior (or any other person) in exchange for actual or promised job benefits such as favorable reviews, salary increases, promotions, increased benefits or continued employment or threatens to terminate any such person for non-co-operation.
- Where a boss or other senior person intrudes into the private life of employees or persistently asks them out.
- Where any employee(s) make(s) sexual epithet, jokes, written or oral references to sexual conduct, and/or gossip regarding one's sex life, comments on an individual's body, comments about an individual's sexual activity, deficiencies or prowess in an attempt to humiliate or make another person uncomfortable.
- Behavior which creates an environment that is intimidating, hostile, offensive, humiliating for women employee.

2. Workplace:

Any place where working relationship and/or employer-employee relationship between the company and the person exists. This includes our premises (including Supreet Chemicals Limited –factory/ Supreet Chemicals Limited -Vapi office) and any place visited by the employee arising out of or during the course of employment including transportation provided by the employer for undertaking such a journey.

3. Aggrieved Women:

In relation to workplace, a woman of any age whether employed or not, who alleges to have been subjected to any act of sexual harassment by the Respondent.



4. Respondent:

Against whom the aggrieved woman has made a complaint.

5. Internal Complaints Committee:

The "Internal Complaints Committee" shall consist of a Chairperson-Director, Presiding Officer and 3 other members. Out of these 5 Committee members, 3 shall be women. One of the 3 women shall be the Chairperson. One of the Committee members shall be a woman from a reputed NGO /legal body / any other social work body familiar with the issues of sexual harassment. The tenure of the committee shall be 3 years & names of the committee members shall be announced by the Director- Supreet Chemicals Limited. The HR – Head shall be the authority for disciplinary actions on issues relating to sexual harassment at the workplace.

GRIEVANCE REDRESSAL MACHINERY:

Given that this policy highlights a preventive focus, there is a need to distinguish between an **informal and formal process**.

Procedure for Informal Grievance Redressal:

Informal processes normally involve an intermediary means for resolving a problem. In the case of Sexual Harassment, at first instance, the person (i.e. HOD / HR / Woman representative of the location) may be the point of first contact for anyone seeking informal support/intervention to stop unwelcome behavior.

Benefits of an informal process are:

- It is consistent with the preventive approach.
- It helps to diffuse a minor incident without diluting as also escalating the problem.
- Often people just want unwelcome behavior to stop without drawing undue attention; an informal process makes this option more possible.

A sense of restraint and responsibility on the part of all concerned is critical for the effective functioning of these guidelines. The preventive / informal process that can be adopted is as follows:

1. Convey to the person who is the cause of distress, about what that person's actions, words, behavior is doing and convey in no uncertain terms that such behavior is not appreciated. **What is important is the "Way" a particular behavior, action or word is perceived; "Intent" is of no consequence.**
2. The second step would be to approach someone within the company – preferably your Superior or HR Representative. The Superior or HR Representative would then **try and counsel / talk it over with a view towards closing the matter amicably.**
3. In any case all such incidents along with the resolution, needs to be reported to the Head- HR who will then provide a short report to the Internal Complaints Committee and the matter will be closed.



4. However, in the event of it not being resolved, then it would need to be escalated to the Internal Complaints Committee.

PROCEDURE FOR FORMAL GRIEVANCE REDRESSAL:

In the event of the complaint not being resolved through informal mechanism, then it would need to be escalated to the Internal Complaint Committee for redressal.

1. The aggrieved woman may make, in writing, a complaint of sexual harassment at the workplace to the Internal Committee, within a period of three months from the date of incident and in case of a series of incidents, **within a period of three months** from the date of the last incident. The complaint can also be routed through the women representatives at respective locations. The Internal Complaints Committee will render reasonable assistance to women for making the complaints in writing. This time limit may **further be extended for 3 months** if the complaints committee is satisfied that there were circumstances that prevented the woman from filing a complaint within the specified timeline.
2. A member of the Internal Complaint Committee would then hold an investigation and **give a report to the Internal Complaint Committee.**
3. The Committee, before initiating the inquiry at the request of the aggrieved woman, will take steps to settle the matter between her and the respondent through **mutual settlement. Wherever such settlement has been arrived, the internal committee shall record it and send the same to the Head HR to take action as per recommendation. Once such settlement has been arrived at no further enquiry shall be conducted by the Internal Complaint Committee, however, a woman can further refer the same to Internal Complaint Committee for redressal if the terms of settlement have not been complied.**
4. The Committee, while investigating the complaint referred to it, **will call upon both the parties separately, listen, look at proof (if any), verify documents produced by the parties, allow the parties to produce witnesses and to put forth their say.** Both the parties during the course of enquiry are given an opportunity of being heard.
5. At the end of the investigation, the Presiding Officer of the Committee shall prepare a report of findings on the complaint and submit it to the Chairperson of the Committee. The findings of the report should be made available to the respondent and aggrieved woman within **10 working days** from the date of completion of enquiry.
6. The Chairperson of the Committee shall ensure that the complaint is attended to within 10 working days after receiving it and **that the investigations are completed within 30 working days.**
7. During the pendency of an inquiry, on a written request made by the aggrieved woman, the committee may recommend to the Head- HR, to:
 - Transfer the aggrieved woman or person accused to any other location of work
 - Grant leave to the aggrieved woman up to the period of 3 months (over and above the entitled leave)
 - Grant such other relief to the aggrieved woman as may be prescribed



8. The Chairperson after studying the report & discussion with the Committee members **shall submit her recommendation to the Head-HR within 10 days of completing the inquiry.**
9. The implementation of the recommendation of Internal Complaint Committee by Head-HR **should be done within 30 days of receipt of such recommendation.**
10. Pursuant to a finding of Sexual Harassment by the Committee against any person accused of the same, the Committee may initiate any one or more of the following actions:
 - Actions in accordance with misconduct mentioned in service rules /appointment letter
 - Issue a verbal warning
 - Issue a warning in writing
 - Issue a suspension
 - Deprived of increment or promotion
 - To deduct, notwithstanding anything in the service rules applicable, from the salary or wages of the accused person the such sum as it may consider appropriate to be paid to the aggrieved woman
 - Order dismissal depending upon the severity & sensitivity of the incident
 - Financial Penalty (In accordance with the mental, physical trauma, loss of career opportunity, medical expenses) in lump sum or in installments.
11. In case the Internal Complaints Committee on conclusion of the enquiry finds that the allegation was malicious or has made the complaints knowing it to be false, or has produced any forged / misleading document, it will recommend action to be taken by Head-HR against the woman who has made the complaint. In all such cases the malicious intent on the part of the woman must be established before any action is recommended.
12. The Internal Complaints Committee will protect the identity of all individuals involved during the process, including the aggrieved woman and respondent and contents of complaints and enquiry proceedings.

Guidelines for members of Grievance Redressal Machinery:

- Believe in the reality of the complaint lodged
- Empathize with the complainant. Do not function like a criminal court.
- Remember that it may be difficult for an employee to talk about anything 'sexual'. Hence there can be a long time interval between the harassment and the actual complaint.
- Handle complaints in a confidential manner and within 30 working days.
- Submit annual report on sexual harassment cases, if any and actions taken to address the same, to the Head-HR.
- Maintain all the data related to sexual harassment cases in the company
- Provide safety for the complainant and his / her supporters, if such a need be felt and that the committee can recommend action against persons indulging in intimidation of the complainant or witness to a complaint.



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- Discard pre-determined notions of how an accused should look or behave or dress. Be aware of stereotypes.
- Do not insist on detailed description of harassment. This could increase the complainant's trauma.
- Most sexual crimes are committed in private; hence there may not be any eye-witnesses
- Since this is a human rights issue, balance of probabilities is a sufficient measure of proof.
- Help the complainant regain his / her self-respect.
- Make 'discreet' enquiries as to whether other employees have experienced similar problems.
- Document results of any sexual harassment complaint or investigation. Not only the results, but also document any corrective action that the employee or supervisor was asked to take.
- Inform all employees that it is their obligation to report sexual harassment that they either experience or witness.
- The inability to substantiate a complaint or provide adequate proof need not attract action against the woman.

Mechanisms to strengthen implementation of Policy:

- Communication of policy and making it available on SCL-Net for employees to refer
- Display constitution of Internal Complaints Committee
- Making it a part of the Corporate Induction at the time of joining of new employees

Appropriate Government can call upon companies / inspect records related to Policy on sexual harassment and its implementation.

Details of women representative and members of Internal Complaint Committee are given here below.

Please Note:

The Internal Complaints Committee will not entertain any anonymous complaints.
